

		Plaintiff also relies on <i>Cullinane v. Uber Technologies, Inc.</i> (1st Cir. 2018) 893 F.3d 53, 56-64 in arguing that the arbitration agreements are invalid because Plaintiff was not provided with “reasonable notice” of them. <i>Cullinane</i>, however, is inapposite and not binding on this Court as it involved the application of Massachusetts contract law. (<i>Id.</i> at 61.) Instead, <i>Meyer v. Uber Techs., Inc.</i> (2d Cir. 2017) 868 F.3d 66 is more instructive since it involved the application of California law. (<i>Id.</i> at 74 [“We agree with the district court’s determination that California state law applies, and note that New York and California apply “substantially similar rules for determining whether the parties have mutually assented to a contract term.”] In <i>Meyer</i>, the Court held that Uber “provided reasonably conspicuous notice of the terms of service, which included arbitration clause” and that the “consumer unambiguously manifested his assent to be bound by terms of service. (<i>Id.</i> at 66.) Further, federal district courts in California have rejected the reasoning of <i>Cullinane</i> in cases involving Uber. (<i>In re Uber Technologies, Inc.</i> (C.D. Cal., Aug. 19, 2019, No. CV183169PSGGJSX) 2019 WL 6317770, at *4; <i>West v. Uber Technologies</i> (C.D. Cal., Sept. 5, 2018, No. 18-CV-3001-PSG-GJS) 2018 WL 5848903, at *4.) Accordingly, the petition is granted and this action is stayed pending completion of arbitration. A status conference regarding arbitration is set for February 6, 2024, at 9:00 a.m. in Department N16. Moving party to give notice.
2	Zimmerer v. O’Connell Landscape Maintenance, Inc.	OFF CALENDAR
3	Reitz v. General Motors, LLC	OFF CALENDAR
4	Jackson v. Coldwell Banker, LLC	TENTATIVE RULING: For the reasons set forth below, the Motion to be Relieved as Counsel, filed by Sarah Serpa of Serpalaw, counsel for Plaintiffs Carlos Jackson, Bianca Jackson, and Dominique Jackson is DENIED as moot. On July 12, 2023, Sarah Serpa of Serpalaw, counsel for Plaintiffs Carlos Jackson, Bianca Jackson, and Dominique Jackson filed a motion to be relieved as counsel. In Serpa’s declaration, she

		contends that the clients wish to terminate their retention of her as counsel and do not oppose relief. On July 14, 2023, a substitution of attorney relating to Dominique Jackson was filed, who consented to being self-represented. [ROA #100.] On July 14, 2023, a substitution of attorney relating to Carlos Jackson was filed, who consented to being self-represented. [ROA #102.] On July 17, 2023, substitution of attorney relating to Bianca Jackson was filed, who consented to being self-represented. [ROA #108.] Given the substitutions of attorney, the court denies the motion as moot. Court to give notice.
5	Account Management Services, Inc. v. Southland Family and Urgent Care, Inc.	TENTATIVE RULING: <u>Motion to Set Aside Default and Default Judgment.</u> Defendants Southland Family and Urgent Care, Inc. and Konstantinos U. Melahoures, M.D. move to set aside the default and default judgments entered against them. For the following reasons, the motion is DENIED. Code Civ. Proc. § 415.20(b) covers substitute service on defendants: “If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served, as specified in Section ... 416.90, a summons may be served by leaving a copy of the summons and complaint at the person’s dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of his or her office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail.... to the person to be served